

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 07/02/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 9:00 AM CASE NUMBER: C24-03050
CASE NAME: ZACH ROCKWELL VS. EAST BAY MUNICIPAL UTILITY DISTRICT
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

If the tentative rulings go uncontested, further Case Management Conference is set for November 30, 2026. If either Party challenges the tentative ruling on Line 9, a Case Management Conference will be held.

2. 8:31 AM CASE NUMBER: C24-03551
CASE NAME: LAMOND KING VS. MOISES BARRAGAN RAMIREZ
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:

TENTATIVE RULING:

Plaintiff Lamond King and counsel for Defendant Moises Ramirez are ordered to appear for a Case Management Conference.

3. 9:00 AM CASE NUMBER: C25-03666
CASE NAME: CHRIS DAVIS VS. VIVINT SOLAR DEVELOPER, LLC
***CASE MANAGEMENT CONFERENCE**
FILED BY:

TENTATIVE RULING:

If the tentative rulings go uncontested, further Case Management Conference is set for November 30, 2026. If either Party challenges the tentative ruling on Line 14, a Case Management Conference will be held.

Law & Motion

4. 9:00 AM CASE NUMBER: C23-02194
CASE NAME: STEPHANIE SENNA VS. THE JOINT CORP
***HEARING ON MOTION IN RE: FINAL APPROVAL**
FILED BY: SENNA, STEPHANIE
TENTATIVE RULING:

Plaintiff Stephanie Senna moves for final approval of her class action and PAGA settlement with defendant John Muir Health. The Court granted preliminary approval on February 2, 2026.

A. Background and Settlement Terms

The original complaint was filed on August 31, 2023, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. An amended complaint adding additional PAGA claims was filed October 8, 2025.

The settlement would create a gross settlement fund of \$1,400,000. The class representative payment to the plaintiff would be \$10,000. Attorney's fees would be \$490,000 (35% of the settlement). Litigation costs would not exceed \$25,000. The settlement administrator's costs (ILYM) would not exceed \$12,000. PAGA penalties would be \$50,000. The net amount paid directly to the class members would be about \$825,000. The fund is non-reversionary. The average net payment for each class member is approximately \$1,058.93, with the highest payout being \$5,220.92.

Because one set of LWDA notices in question were filed before June 19, 2024, while the other was filed after that date, penalties attributed to the earlier notice must be allocated 25% to the aggrieved employees, while those attributed to the later notice must be allocated 35% to the aggrieved employees. (Labor Code §2699(m), (v)(1).) \$40,000 of the payment is to be split 75%/25%